

26STLC01920 26STLC01920

County: los-angeles

Division: Civil Law and Motion

Department: 26

Hearing date: 2026-08-12

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Case Number: 26STLC01920 Hearing Date: August 12, 2026 Dept: 26

TENTATIVE RULING:

Defendants Essex Portfolio, L.P. and Essex Property Trust,

Inc.'s Motion to Quash Alleged Service of Summons is

granted. The Proofs of Service filed by

Plaintiff with respect to the Summons and Complaint on March 20, 2026, March

26, 2026, and April 1, 2026 are hereby ordered stricken.

Order to Show Cause Re: Failure to Serve Defendants with

Summons and Complaint is set for 09/02/2026 at 9:30 am in Department 26 at the

Spring Street Courthouse.

Moving party to give notice.

Analysis:

On March 20, 2026, Plaintiff Chris

Paul ("Plaintiff"), in propria persona, filed the Complaint

in this action against Defendants Essex Portfolio, L.P. and Essex

Property Trust, Inc. (erroneously sued herein as Essex Property Trust)

("Defendants"). The Complaint alleges cause of action

for (1) Wrongful

Eviction (Illegal Lockout); (2) Violation of Civil Code 789.3; (3) Conversion;

and (4) Intention Infliction of Emotional Distress.

On

the same day, Plaintiff filed an Ex Parte Application to Restore Possession of

Premises. The Court denied the application without prejudice for lack of proper

notice upon Defendants. (Minute Order, 03/23/26.) On March 27, 2026, the Court

granted (1) Ex Parte Application For Order Restoring Possession of Premises

filed by Chris Paul on 03/24/2026; and (2) Ex Parte Application For Order

Restoring Possession of Premises filed by Chris Paul on 03/26/2026. (Minute

Order, 03/27/26.) The Court issued a temporary restraining order requiring

Defendants to stop denying Plaintiff access to the premises and set a hearing

on preliminary injunction for April 17, 2026. (Ibid.)

Plaintiff filed Proof of Service

by Substituted Service with respect to the Summons and Complaint upon

Defendants on April 1, 2026. On April 10, 2026, Plaintiff's Ex Parte

Application for Order to Compel came for hearing and both parties appeared.

(Minute Order, 04/10/26.) The Court denied the Ex Parte Application for Order

to Compel, as follows: "The Court will not make a finding of contempt or issue any further order to compel compliance at this time. The Court's prior order for a temporary restraining order is valid and enforceable. Defendants are required by court order to allow Plaintiff back into the premises, as stated in the March 27, 2026 Order, which was signed by this Court. . . . Self-help, by locking Plaintiff out of the premises, is not a permissible means to contest the TRO." (Minute Order, 04/10/26, pp. 1-2.)

On April 17, 2026, the Court held the Order to Show Cause Re: Why a Preliminary Injunction Should Not Issue to Restore Plaintiff's Possession of the Premises Located at 401 S. Detroit Street, Apartment 114, Los Angeles, CA 90036, and to Order Defendants to Cease Interfering with Plaintiff's Access to the Premises. (Minute Order, 04/17/26.)

Only Plaintiff appeared. (Ibid.) The Court granted the preliminary injunction and ordered that it would remain in effect until February 10, 2027.

(Ibid.) The Court also set an Order to Show Cause Re: Why Defendants Should Not Pay Reasonable Expenses for Failure to Comply with the 03/27/2026 Minute Order for June 18, 2026. (Ibid.)

On May 5, 2026, Plaintiff's Application for an Order to Show Cause Re: Contempt came for hearing and the Court set an Order to Show Cause Re: Monetary Sanctions Under Code of Civil Procedure § 177.5 as

to Each Defendant for Violation of (i) The TRO and (ii) The Preliminary Injunction, for Total Potential Sanctions of \$3,000 as to Each Defendant for May 12, 2026. (Minute Order, 05/05/26.) On May 12, 2026, again, Plaintiff was the only party to appear. (Minute Order, 05/12/26.) The Court ordered each Defendant to pay sanctions of \$1,500.00 for violation of the TRO and \$1,500.00 for violation of the preliminary injunction, by May 26, 2026. (Minute Order, 05/12/26.)

Defendants, specially appearing, filed an Ex Parte Application to Reconsider and Dissolve the Preliminary Injunction and Vacate the Order Imposing Monetary Sanctions Against Defendants or, in the Alternative, to Shorten Time or Specially Set a Hearing on the Motions, on May 21, 2026. The Court denied the Application to shorten time, but set the matter for hearing on June 11, 2026 upon Defendants' subsequent showing of proper notice upon Plaintiff. (Minute Order, 05/26/26.) On June 11, 2026, the Court determined that Defendants gave proper notice of the hearing to Plaintiff and continued the matter as an evidentiary hearing set for June 30, 2026. (Minute Order, 06/11/26.) Also on that date, the parties agreed to accept electronic service.

(Ibid.)

Following the evidentiary hearing,

the Court dissolved the preliminary injunction, set aside and vacated all

sanctions against Defendants, and discharged the Order to Show Cause Re: Why

Defendants Should Not Pay Reasonable Expenses for Failure to Comply with the

03/27/2026 Minute Order. (Minute Order, 06/30/26.) Defendants filed and

electronically served the instant Motion to Quash Alleged Service of Summons on

July 15, 2026. No opposition has been filed to date.

Discussion

Defendants bring the Motion to Quash pursuant to

Code of Civil Procedure section 418.10, subdivision (a)(1), which states in

relevant part: "A

defendant, on or before the last day of his or her time to plead or within any

further time that the court may for good cause allow, may serve and file a

notice of motion for one or more of the following purposes: To quash service of

summons on the ground of lack of jurisdiction of the court over him or her." (Code Civ. Proc., § 418.10, subd. (a)(1), emphasis added.)

A defendant has 30 days after the service of the summons to file a responsive

pleading. (Code Civ. Proc., § 412.20,

subd. (a)(3).)

An

appearance at a hearing at which ex parte relief is sought is not a general

appearance and does not constitute a waiver of the right to make a motion under

Section 418.10. (Code Civ. Proc., §

418.11.) Defendants' appearance pursuant to the hearing set on their Ex Parte

Application to Dissolve the TRO and Vacate the Order Imposing Monetary

Sanctions, therefore does not waive the ability to file this motion.

The

Court finds good cause for the timing of the Motion, in light of the procedural

history recounted above. Defendants filed the instant Motion within two weeks

of the evidentiary hearing set to resolve Defendant's Ex Parte Application to

Dissolve the TRO and Vacate the Order Imposing Monetary Sanctions.

Substantively,

"[w]hen a defendant challenges the court's personal jurisdiction on the ground of improper

service of process 'the burden is on the plaintiff to prove the existence of

jurisdiction by proving, inter alia, the facts requisite to an effective

service.'" (Summers v. McClanahan (2006) 140 Cal.App.4th

403, 413.) A proof of service containing a declaration from a registered

process server invokes a rebuttable presumption affecting the burden of

producing evidence, of the facts stated in the return. (Cal. Evid. Code, § 647;

see American

Express Centurion Bank v. Zara (2011) 199 Cal.App.4th 383,

390.)

Defendants

challenge the three proofs of service filed by Plaintiff with respect to the

Summons and Complaint on March 20, 2026, March 26, 2026, and April 1, 2026. All of the challenged proofs of service are deficient.

The

March 20, 2026 proof of service purports to demonstrate service upon both

Defendants by mail at 915 Wilshire Blvd., Los Angeles, California. (Proof of

Service, filed 03/20/26, ¶¶4-6.) The proof of service is defective in a number

of respects. First, it attempts to improperly demonstrate service upon two

different Defendants in a single affidavit. The statute for demonstrating proof

of service of the summons refers to persons and parties in the singular,

thereby requiring a separate proof of service for each Defendant. (See Code

Civ. Proc., § 417.10.) Second, service by mail alone is not an authorized

method of service of a summons. (See Code Civ. Proc., § 415.30) Third, it does

not indicate upon whom service was made on behalf of the corporate Defendants,

as required to demonstrate compliance with Code of Civil Procedure section

416.10. In fact, the proof of service used by Plaintiff specifically states

that it must not be used to show service of a summons and complaint. (Proof of

Service, filed 03/20/26, p. 1.) The correct (and mandatory) proof of service

form includes a section to list the name of the person to whom the papers were

delivered, as well as the party upon whom service was made. (Judicial Council

Form, POS-010, ¶3.) The March 20, 2026 proof of service, therefore, does not demonstrate service of the Summons and Complaint upon Defendants in accordance with the statutory requirements.

Plaintiff

then filed a proof of service on March 26, 2026 using the correct form, but indicating substitute service upon “Anne Morrison Agent for Service of Process” as the party. (Proof of Service, filed 03/26/26, ¶3a.) Therefore, the proof of service does not demonstrate service upon either Defendant Essex Portfolio, L.P., nor Essex Property Trust, Inc. In addition to failing to state that Defendants were the parties served with the papers, the proof of service does not list in the proper location the name of the person who was served on behalf of the corporate Defendants, nor show that the documents were thereafter mailed to the service address. (Id. at ¶¶3b, 5b(4).) Substitute service is only complete on the tenth day after the papers are mailed. (Code Civ. Proc., § 415.20.) Therefore, the March 26, 2026 proof of service also fails to demonstrate service of the Summons and Complaint upon either Defendant as required by statute.

Finally, another proof of

substitute service was filed on April 1, 2026, which again improperly refers to service on both Defendants. (Proof of Service, filed 04/01/26, ¶3a.) This proof

of service states that the papers were served on Defendants by leaving them with Anne Morrison, Agent of Service, at 1100 Park Place, #200, San Mateo, California, on March 30, 2026. (Id. at ¶¶4-5.) It also states that the papers were mailed to the service address on the same day. (Id. at ¶5c.) Defendants dispute service in this manner was ever accomplished. Their Vice-President and Associate General Counsel, Michael Beler, declares that no papers were ever served on a person employed by Defendants at 1100 Park Place, including Anne Morrison. (Motion, Beler Decl., ¶4.) Nor were the papers mailed to that address. (Ibid.) The April 1, 2026 proof of service is not attested to by a registered process server, placing the burden of proving effective service upon Plaintiff. (Proof of Service, filed 04/01/26, ¶7.) Plaintiff, however, has not filed an opposition to the instant Motion to demonstrate that service was accomplished upon either Defendant as stated in the proof of service.

Based on the foregoing, the Court finds Plaintiff has failed to demonstrate service of the Summons and Complaint upon Defendants in accordance with the statutory requirements. The Court quashes service of the Summons upon Defendants, without which it has no personal jurisdiction over them.

(Dill v. Berquist Const. Co., Inc. (1994) 24 Cal.App.4th 1426, 1433.)

Conclusion

Defendants Essex Portfolio, L.P. and Essex Property Trust,

Inc.'s Motion to Quash Alleged Service of Summons is

granted. The Proofs of Service filed by

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